

IN THE SUPREME COURT OF PAKISTAN

(Original / Review Jurisdiction)

Present:

Mr. Justice Jawwad S. Khawaja

Mr. Justice Khilji Arif Hussain

C.R. P No. 167/2012 in Suo Motu Case No.5 of 2012

(Against the order dated 14.6.2012 passed by his Court in SMC No. 5 of 2012)

AND

CMA NO.3344/2012 in CRP 167/2012.

(Holding of thorough inquiry in giving protocol to a litigant party
In a case in Supreme Court)

Dr. Arsalan Iftikhar.

Petitioner

VERSUS

Malik Riaz Hussain etc.

Respondents

For the Petitioner : Sardar M. Ishaq Khan, Sr. ASC with petitioner.

For respondent No.1: Mr. Zahid Hussain Bokhari, ASC
Raja Abdul Ghafoor, AOR

For respondent No.4 : Mr. Shafi Muhammad Chandio, DAG.

For respondents 2-3 : N.R.

For the NAB (on Court notice): Mr. K. K. Agha, P.G. NAB.

On Court notice: Mr. Khushdil Khan Malik, J.S. M / o Interior.
(In CMA 3344 / 2012) Faisal Bashir Memon, SP Rural
Malik Tahir, DSP Rural.

Date of hearing: 31.07.2012

ORDER

Jawwad S. Khawaja, J. Sardar M. Ishaq learned counsel for Dr. Arsalan has argued this case at some length although he has not concluded his submissions as yet. However, during the course of the hearing, the names of some members of the Joint Investigation Team came up and in this behalf it was noted that in ground 'e' of the review petition, mention was made, *inter alios*, of one member of the Joint Investigation Team namely, Faisal Bashir Memon who is stated to have been recently promoted as SP (Rural) Islamabad. It is averred in the review petition that the said Faisal Bashir Memon is "a crony of Malik Riaz Hussain and was seen sticking close to the later on his first visit to Supreme Court of Pakistan in the Suo Moto case hearing although he (Faisal Bashir Memon) had not been assigned any such duty on the said date".

2. The office had, more than one month ago, initiated a note on the administrative side relating to a breach of the security procedures at the Supreme Court on 12.6.2012 when the respondent Malik Riaz Hussain had first appeared in Court in SMC 5/12. A

report in the matter had been sought from the Secretary Ministry of Interior on 28.6.2012 after the Hon'ble Judge dealing with security issues had examined the matter. Since the Secretary (Interior) had failed to submit his report and also in view of the relevance to the case in hand, the Office was directed to fix the matter in Court. This Office note was numbered as CMA No.3344/2012 and is listed today. Faisal Bashir Memon and Malik Tahir who are present in Court stated that they were not served with the requisite notices. Khushdil Khan Malik, Joint Secretary, Ministry of Interior is present while the Secretary is not. The Office noting has mentioned, *inter alia*, video images of the breach of security noted above. We have seen in Court the footage of the entry of Malik Riaz Hussain in the Supreme Court premises and have also observed from the said footage that Faisal Bashir Memon was indeed "sticking close" to Malik Riaz Hussain and was also seen making a few protective/sheltering gestures while walking closely with and escorting the respondent Malik Riaz Hussain. In this view of the matter and even if, for the time being, we do not take into account the other submissions made on behalf of the petitioner alleging serious bias and partiality in the inquiry, it would, in our opinion, be prudent to stay the investigation until day after tomorrow i.e. 2.8.2012 so that Faisal Bashir Memon can explain his position.

3. At this point Mr. K. K. Agha, learned Prosecutor General NAB stated that he had objection to this interlocutory order. He also stated that he would be making submissions to ensure that there was transparency in the inquiry. He further contended that one day more would not make any difference if the inquiry continues. We agree with his submission that one day or even two will not make any difference but would like to state that having seen the CCTV footage a serious question, *prima facie*, has arisen going to the root of the inquiry. In this view of the matter, it would be appropriate and heavens will not fall if the inquiry is stayed for two days until 2.8.2012. We may reiterate that after seeing the CCTV footage of Faisal Bashir Memon in such close proximity to the respondent Malik Riaz and that he remained posted as SP of Behria Town P.S. , it would be unsafe to allow the JIT of which Faisal Bashir Memon is a member, to continue its inquiry. Faisal Bashir Memon may give an explanation or justification for what we and

Faisal Bashir himself present in Court, has seen displayed on the screen through multimedia.

4. The zealous insistence of NAB to continue with the inquiry is *prima facie*, not consistent with the desire to make sure that the inquiry is not tainted with bias, dishonesty or *mala fide*. We have found this unseemly haste in the face of the CCTV footage, to be quite uncomprehensible, particularly in the case of NAB. NAB claims to be an even-handed and unbiased investigating agency. We, therefore, would have thought it would be in keeping with its avowed impartiality if NAB would itself have decided to keep the inquiry pending after seeing the footage showing a member of the JIT (Faisal Memon) acting almost as a personal security employee of Malik Riaz, receiving Malik Riaz at the entrance to the lobby of the Supreme Court building and then escorting him. Regrettably, NAB, instead of seeking time to look into the matter itself appeared to be in haste which we found to be inappropriate in view of this footage which we have seen. The Prosecutor General, NAB also was unduly keen on carrying on with the inquiry although we have not found any justification, and none was proffered by the Prosecutor General, as to why it is imperative the inquiry should not be stopped for two days till 2.8.2012 while we make sure that it is not tainted with bias.

5. At this juncture, Mr. Zahid Hussain Bokhari learned counsel for Malik Riaz rose from his seat and made objections to the passing of the above interlocutory order. He firstly wanted to know as to how the learned counsel for the petitioner was aware of the existence of the video footage. Secondly, he questioned as to how this footage was present in the Court room and arrangements had been made for its viewing in Court. Thirdly, he said that there was no certificate of veracity of this footage and, therefore, it must be excluded from consideration even for the limited purpose now being examined by us. Lastly, he submitted (without giving any reason) that the stay of the inquiry would *prima facie*, prejudice the inquiry and the case of his client.

6. These objections are easily addressed because learned counsel for the respondent is not aware of the relevant facts which have been adverted to above. He is also unaware that the CCTV footage was viewed, not at the request of the learned counsel for the petitioner but on the basis of the internal probe overseen by an Hon'ble Judge of this

Court into the breach of security procedures. An application (CMA No.3350/2012) was filed on behalf of the petitioner seeking information/footage but this application has neither been heard nor has any order been passed thereon. Nevertheless, both learned counsel for the respondent Malik Riaz Hussain and the Prosecutor General, NAB were interested in knowing how the petitioner was aware of the existence of CCTV footage or that Faisal Bashir Memon was seen sticking close to the respondent Malik Riaz Hussain, if indeed the petitioner did not have access to the video footage.

7. Learned counsel for Dr. Arsalan submitted that he himself, the petitioner and numerous other persons in the main entrance lobby of the Supreme Court had, with their own eyes, seen Faisal Bashir Memon receiving Malik Riaz Hussain and extending full protocol to him. Secondly, he stated that he was a counsel in the contempt case relating to the storming of the Supreme Court by a rowdy crowd in 1997. In that case also, CCTV footage was produced in Court and it is within his own knowledge that as part of the security arrangements CCTV footage is made and kept by the Court. The allegation made in ground 'e' of the review petition, according to him, is based on direct eye witness evidence and the footage was only sought to confirm beyond doubt, the veracity of what had been seen by so many persons including lawyers, litigants etc.

8. More than one month back on 28.6.2012, a letter was addressed to the Secretary, Ministry of Interior asking him to "hold a thorough inquiry and submit a report within 7 days" as to how and why the security arrangement of the Court was breached. This was done on the basis of the orders issued by the Hon'ble Judge who has oversight of security at the Supreme Court premises. Although the aforesaid letter was addressed to the Secretary, Ministry of Interior more than one month ago, the Secretary has not submitted his report as directed. It was in these circumstances that a reminder was issued to the Secretary (Interior) on 25.7.2012. It is in the course of these official proceedings that CCTV footage was also mentioned. The application filed on behalf of the petitioner (CMA No.3350/2012) has only made a request for summoning documents etc. including video footage for just and judicious decision in the matter. As noted above, the said application has neither been heard nor has any order been passed on it.

9. The third objection relating to a certificate of verification of the footage is a matter which the learned counsel for Malik Riaz Hussain is free to urge but for the present, it is important for us to ensure that there is fairness and transparency in the inquiry including the constitution of the Joint Investigation Team. Learned counsel for the respondent, therefore, made a request that instead of postponing the matter to 2.8.2012, he may be given more than two days because he had to examine the law including the Qanun-e-Shahadat Order. We, however, are of the view that an adjournment of two days will be sufficient for legal research by learned counsel for Malik Riaz. Furthermore the reports of the Secretary Interior, Faisal Bashir Memon and Malik Tahir should be obtained and, after consideration of these reports, appropriate orders be passed on 2.8.2012. The Office shall also submit its report in the matter. We are also of the view that the truth of the case should be uncovered and this should be done promptly in a fair, honest, impartial and transparent manner. Once, we have the three reports respectively from the Secretary Interior, Faisal Bashir Memon, Malik Tahir and the report of the Office, we shall pass such further orders as may be necessary.

10. If on the next date of hearing, learned counsel for the respondent still feels the need to make additional legal research, he may make a request for more time in that behalf and the same will be considered. We note that although the learned Prosecutor General had undertaken to file documents pertaining to the inquiry alongwith NAB's concise statement but this has not been done. Let the needful be done.

11. To come up on 2.8.2012 for further orders. Until that date, the inquiry shall remain stayed.

Judge

Judge

Islamabad

31.7.2012

A.Rehman.

Not approved for reporting.